

which an infant was incapable. Upon this the trustee [*181] took a lease * for the benefit of himself; but Lord King said, "I very well see, if a trustee, on the refusal to renew, might have a lease to himself, few trust estates would

loco parentis; *Williams v. Williams*, 63 Md. 371; *Million v. Taylor*, 38 Ark. 428; likewise of gift to parent; *Roberts v. Barker*, 63 N. H. 332; *Wright v. Vanderplank*, 2 Kay and J. 1; see *Bradshaw v. Yates*, 67 Mo. 221; as to blood relatives generally, see *Prince v. Prince*, 67 Ala. 565; *Robins v. Hope*, 57 Cal. 493; *Lett v. Emmett*, 37 N. J. Eq. 535; *White v. Smith*, 51 Ala. 405; *Bradley v. Fuller*, 118 Mass. 239. As to co-tenants, see *Mathews v. Bliss*, 22 Pick. 48; *Morse v. Bassett*, 132 Mass. 502.

Weak-minded persons. — *Stout v. Smith*, 98 N. Y. 25; but see *Reed v. Peterson*, 91 Ill. 288; *Selden v. Myers*, 20 How. 506; reading papers of which they do not get the purport; *Trambly v. Ricard*, 130 Mass. 259; *Mullen v. Old Colony R. R. Co.* 127 Mass. 86; if they sell at inadequate price, there is a presumption against the sale; *Moore v. Moore*, 56 Cal. 89; *Storrs v. Scougale*, 48 Ala. 387; gift; *Davis v. Dean*, 66 Wis. 100; fairness in transaction; *Rogers v. Higgins*, 56 Ill. 244; *Galpin v. Wilson*, 40 Ia. 90. Equity will also relieve in case of drunkenness and duress; *Barrett v. Buxton*, 2 Ark. 167; *Belcher v. Belcher*, 10 Yerg. 121; *Phillips v. Moore*, 11 Mo. 600; *Calloway v. Witherspoon*, 5 Ired. Eq. 128.

The Statute of Frauds. — This statute will not interfere with the proof of fraud, either actual or constructive, otherwise it would aid that which it is intended to prevent; *Ryan v. Dox*, 34 N. Y. 307; and generally it will not exclude proof of trusts growing out of the acts rather than the agreements of parties; *Campbell v. Dearborn*, 109 Mass. 130, where the question is considered and the authorities reviewed at length; *Ferguson v. Haas*, 64 N. C. 772; *Judd v. Mosely*, 30 Ia. 428; *Squire's App.* 70 Pa. St. 268; where a deed has been fraudulently obtained which is different in its import and effect from what was intended by all the parties thereto, equity will grant relief; *Russell v. Southard*, 12 How. 139; *Phillips v. Phillips*, 50 Mo. 603; *Jenkins v. Eldredge*, 3 Story, 181; *Sprigg v. Bank*, 14 Pet. 201; *Hughes v. Edwards*, 9 Wheat. 489; *Babcock v. Wyman*, 19 How. 289; *Flagg v. Mann*, 14 Pick. 467; *Browne v. Dewey*, 1 Sandf. Ch. 56; *Conway v. Alexander*, 7 Cranch, 218; *Eaton v. Green*, 22 Pick. 526; the bill must contain a plain case of fraud; *Gouverneur v. Elmendorf*, 5 Johns. Ch. 79; *Forsyth v. Clark*, 3 Wend. 637; *Kennedy v. Kennedy*, 2 Ala. 571; and parol is admissible to prove it, even though it alters or destroys a written instrument; *Barrell v. Hanrick*, 42 Ala. 60; *Miller v. Cotten*, 5 Ga. 346; *Christ v. Dittenbach*, 1 Serg. & R. 464; likewise if, through mistake or accident, an instrument does not show the real intention of the parties; *Peterson v. Grover*, 20 Me. 363; *Hunt v. Rousmanier*, 8 Wheat. 174; *Blanchard v. Moore*, 4 J. J. Marsh. 471; *Gower v. Sterner*, 2 Whart. 75; but if through negligence, or ignorance of law, a deed is incomplete it cannot be reformed if the defendant claims that it covers all that was originally intended; *Dwight v. Pomroy*, 17 Mass. 303; *Wheaton v. Wheaton*, 9 Conn. 96; *Chamness v. Crutchfield*, 2 Ired. Eq. 148; *Garwood v. Eldridge*, 1 Green. Ch. 146; and parol evidence must be clear, satisfactory, and uncontradicted; *Collier v. Collier*, 30 Ind. 32; *Lingenfelter v. Richey*, 62 Pa. St. 128; notes to *Woollam v. Hearne*, 2 Lead. Cas. Eq. 684; see previous note to resulting trusts, in reference to parol. The right of the original owner where there has been fraud in the conveyance is an equitable interest which he can dispose